

The Court Machinery Versus Court Constitution Dividing Line

ORDER

PC

[2026] VJS-PC 8 · 10 June 2026

BINDING

 · assent: standing bounded assent · subject: court machinery vs constitution dividing line

Appeal dismissed 3-0; County Court affirmed.

Appeal dismissed; County Court AFFIRMED, 3-0. The dividing line is the constitutive-operation test. A measure touches the court CONSTITUTION only if it alters who sits, the bench size or parity, the jurisdiction or tier of a court, or the assent rule (2026-VJS-COURTS-CONSTITUTION-001; Framework Act s.10, s.25). Everything else, including how a court records what it did, is MACHINERY within the s.7 statutory-instrument power. The schema fields are optional, serde-default, prospective, and validity-neutral: no field is a precondition of a valid ruling, the 22 legacy orders load unchanged, and force still flows from the deciding bench. Recording is not constituting. REG-COURT-RECORD-001 changes no bench, jurisdiction, or assent source, so s.7 reaches it.

DIRECTIVE	ACTOR	MUST
D1	lexby	apply the constitutive operation test constitution only if it alters who sits bench size or parity jurisdiction tier or the assent rule else machinery
D2	lexby	treat court record schema and recording duties as machinery within s7 when optional prospective and validity neutral
D3	lexby	hold a schema field machinery only while serde default and no field is a precondition of a valid or loadable ruling
D4	lexby	route to primary law or the supreme court any measure that makes a record field constitutive of validity
D5	lexby	record this appeal affirming 2026 vjs cc order schema 001 and confirm reg court record 001 stands in force

FORBIDDEN

reclassifying an optional prospective recording duty as a constitutional amendment
making any court record field a precondition of a valid or loadable order by statutory instrument
altering bench size parity jurisdiction tier or the assent rule through a statutory instrument
invalidating a legacy ruling for want of the structured fields
treating the form of a courts output as constitutive of what the court is

Appeal dismissed 3-0; County Court affirmed. The dividing line is the constitutive-operation test: constitution is who sits, bench size or parity, jurisdiction, the assent rule; all else is machinery within s.7.